

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

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Date: May 21, 2026

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1.	Montero v. Trevino 25-1526889	Before the Court is a Motion to Quash Service of Summons brought by Defendant Anthony Trevino. For the reasons set forth herein, the motion is GRANTED. The Court notes initially that although there is no proof of service of the motion in the Court's file, plaintiff has expressly waived any objection on the grounds of defective service. (Montero Decl. ¶5 – "I

choose to waive the issue of service and proceed with the hearing on this motion as scheduled.”)

Turning to the merits, this action arises from a dispute over rightful possession of two cats. Plaintiff alleges that in August 2021, she agreed to Defendant having possession of the cats but that such was to be only temporary. Sometime thereafter Plaintiff decided she wanted the cats back and Defendant refused. This action was then filed in November 2025.

In this motion, Defendant, an Arizona resident, asserts the court lacks personal jurisdiction over him as it relates to Plaintiff’s complaint. Defendant submits evidence he has been a resident of Arizona since August 2021, he does not conduct business in California and does not have an office or employees in California. (Trevino Decl. ¶¶2-3) He also states that the two cats at the center of this litigation have resided in Arizona continuously since 2021. (Trevino Decl. ¶4)

“When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts. [Citation.]” (*Ziller Elecs. Lab GmbH v. Superior Ct.* (1988) 206 Cal.App.3d 1222, 1232-33.)

In opposition, Plaintiff submits her own declaration wherein she states that prior to August 2021, she lived with defendant for one year in California. She also states that she is currently an Orange County resident and has communicated with the defendant at unspecified times since August 2021. Plaintiff does not dispute that the cats have resided with the Defendant in Arizona since August 2021.

Personal jurisdiction may be either general or specific for purposes of the minimum contacts inquiry. (*Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.) Based on the foregoing evidence, Plaintiff asserts she has established general jurisdiction over Defendant. “For an individual, the paradigm forum for the exercise of general jurisdiction is the individual’s domicile; for a corporation, it is an equivalent place, one in which the corporation is fairly regarded as at home.” [Citation.] A court with general jurisdiction may hear any claim against that defendant, even if all the incidents underlying the claim occurred in a different State.” (*Bristol-Meyers Squibb Co. v. Superior Court* (2017) 582 U.S. 255, 262.) Here, the evidence is insufficient to establish Defendant’s contacts with California rise to the level to give the court general personal jurisdiction over Defendant.

Where a defendant’s contacts are not so pervasive as to exercise general jurisdiction over him, the defendant may still be subject to

		jurisdiction on claims related to its activities in California under a specific jurisdiction analysis. The inquiry focuses on the relationship between the defendant, the forum, and the litigation. (<i>Walden v. Fiore</i> (2014) 571 US 277, 283-284.) For the state to exercise jurisdiction over a defendant consistent with due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (<i>Id.</i> at p. 284; <i>Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County</i> (2017) 582 US 255, 262-268.) Such “specific” personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff’s cause of action “arises out of” or is “related to” the defendant’s contacts with the forum state; and (3) reasonableness—the forum’s exercise of personal jurisdiction in the particular case comports with “fair play and substantial justice.” (<i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 477-478; <i>Vons Cos., Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) Plaintiff does not dispute that the defendant has resided in Arizona since August 2021. (<i>Fenton v. Bd. of Directors</i> (1984) 156 Cal.App.3d 1107, 1116 - “the test for determining a person’s domicile is physical presence plus an intention to make that place his permanent home.”) There is no evidence that Trevino has had any contact with California since August 2021 which related to the cats. There is no evidence the cats have resided anywhere but Arizona since August 2021. The alleged wrongful conduct of failing to return the cats occurred while Trevino and the cats resided in Arizona. While plaintiff argues the Defendant’s acts were “expressly aimed at plaintiff, a resident of the forum state,” such is insufficient. (<i>Walden v. Fiore</i> (2014) 571 U.S. 277, 289–90 – “mere injury to a forum resident is not a sufficient connection to the forum.”) Accordingly, plaintiff has failed to establish facts showing either general or specific jurisdiction. The motion is therefore GRANTED and the plaintiff’s complaint against Defendant Anthony Trevino is DISMISSED, without prejudice. <i>Mr. Trevino is ordered to give notice of this ruling.</i>
2.	Murphy v. General Motors, LLC 24-1403247	(<i>The Court will hear argument on the sanctions issue</i>)
3.	Marinez v. Garden Grove Post Acute LLC 24-1441969	Defendants Garden Grove Post Acute LLC, Sun Mar Health Care, Inc., and Sun Mar Management Services’s (“Defendants” together) Motion to Compel Arbitration (“Motion”) is DENIED. Defendants have produced a copy of a valid arbitration agreement (“Agreement”) between Defendants and plaintiff Kimberly Martinez (“Plaintiff”), which requires arbitration between the parties under the Federal Arbitration Act (“FAA”). (Denning Decl., Ex. A.)

"Under both the FAA and California law, arbitration agreements are valid, irrevocable, and enforceable, except upon such grounds that exist at law or in equity for voiding any contract. [Citation.] Such challenges to the validity of arbitration agreements can be divided into two types. [Citation.] One type specifically challenges the validity of the agreement to arbitrate. The second challenges the contract as a whole, either on a ground that directly affects the entire agreement or on the ground that the illegality of one of the contract's provisions renders the whole contract invalid. (*Ibid.*)" (*Winter v. Window Fashions Pros., Inc.* (2008) 166 Cal. App. 4th 943, 947 ("Winter").) "As a matter of federal law, arbitration clauses are "separable" from the contracts in which they are embedded." [Citation.] . . . a challenge to the arbitration clause itself must be decided by the court. [Citation.] Nevertheless, a court still must consider one type of challenge to the overall contract, *i.e.*, a claim that the party resisting arbitration never actually agreed to be bound." (*Winter, supra*, 166 Cal. App. 4th at 947–48.)

"Only 'generally applicable contract defenses, such as fraud, duress, or unconscionability, may be applied to invalidate arbitration agreements without contravening § 2 of the FAA." (*Giuliano v. Inland Empire Pers., Inc.* (2007) 149 Cal. App. 4th 1276, 1285.)

"The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 ("Engalla"); *Green Tree Financial Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91-92.)

Defendants have met their initial burden of showing an arbitration provision exists between the parties covering the issues alleged in the First Amended Complaint ("FAC"), with the FAA controlling. The burden transfers to Plaintiff to prove by a preponderance of the evidence any fact necessary to its defense. (*Engalla, supra*, 15 Cal.4th at 972.)

Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021

Plaintiff argues the Agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA"). "[T]he EFAA rejects the policy of favoring enforceability of arbitration agreements and replaces it with a rule of *unenforceability*" [Emphasis in original.] (*Casey v. Superior Court* (2025) 108 Cal.App.5th 575, 585 ("Casey"); 9 U.S.C., §§ 2, 401-402.) "[W]here a plaintiff's lawsuit contains at least one claim that fits within the scope of the EFAA, "the arbitration agreement is unenforceable as to all claims asserted in the lawsuit." [Citation.] The EFAA provides that it applies to "a case" (9 U.S.C. § 402(a))—as opposed to a claim—that a plaintiff brings alleging sexual harassment, meaning that the EFAA applies to an entire case. " (*Casey, supra*, 108 Cal.App.5th at 588.)

The EFAA covers all disputes between the parties that “relate to conduct that is alleged to constitute” sexual assault and sexual harassment, regardless of the theory of liability. (9 U.S.C. § 401(3)-(4).) The statute provides in relevant part: “Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (9 U.S.C., § 402(a).)” [Emphasis added.] (Casey, *supra*, 108 Cal.App.5th at 584.)

“[T]he EFAA does not refer to a “sexual harassment claim” or “sexual harassment cause of action,” but rather a “sexual harassment dispute.” Moreover, several courts have rejected the argument that a plaintiff is barred from invoking the EFAA simply “because none of her claims are styled as ‘sexual harassment’ claims.” (Lee v. Marriott Int’l, Inc., No. 25-CV-01169-EMC, 2025 WL 2689263, at *9 (N.D. Cal. Sept. 21, 2025)(“ Lee”).) The fact the plaintiff did not assert a cause of action for sexual harassment or hostile work environment (under Title VII or FEHA) did not bar the plaintiff from relying on the EFAA. (*Ibid.*)

In a case brought under state law, such as FEHA in the present matter, the court looks to the definition of sexual harassment in the code sections the case is based upon. (See, Lee, *supra*, 2025 WL 2689263, at *1.) Under Gov’t Code § 12940(j), it is illegal to harass an individual based upon, among other things, sex, gender, and reproductive health decision-making, which includes pregnancy, childbirth, or related medical conditions. (Lee, *supra*, 2025 WL 2689263, at *12; Bailey v. San Francisco Dist. Attorney’s Off. (2024) 16 Cal. 5th 611.)

Plaintiff sexual harassment allegations were that upon disclosing her pregnancy was met with a ‘sour attitude’ from her supervisor upon Plaintiff announcing the pregnancy. (FAC ¶ 23.) The supervisor completely changed the way she interacted with Plaintiff, the supervisor treated Plaintiff coldly and required a note confirming the pregnancy. After Plaintiff was placed on workplace restrictions, the supervisor became upset and stated she would need to discuss the restrictions with the Director. (FAC ¶ 25.) Plaintiff’s supervisor then began to harass Plaintiff due to the pregnancy restrictions, including ignoring a request for assistance in moving a patient transfer machine which was over Plaintiff’s weight restrictions. (FAC ¶¶ 26, 103.) The supervisor then ignored and pretended not to hear Plaintiff and Plaintiff then had to find another CNA to assist Plaintiff. Plaintiff was then constructively discharged by being taken off the schedule and told there was no work for her. (FAC ¶¶ 27-28, 103.) Plaintiff’s attempts to reach out to the Director were ignored. (FAC ¶¶ 29, 103.) The one shift which was later offered to Plaintiff was in the evening and not the mid-day shift, which she had been previously working. (FAC ¶ 30.) This was allegedly due to Plaintiff’s weight restrictions. (FAC ¶¶ 30-32.) Additional attempts by Plaintiff to discuss the issues with the supervisor and Director were ignored. (FAC ¶ 33.) Plaintiff has sufficiently pled harassment based

		upon reproductive health decision-making, which includes pregnancy, childbirth, or related medical conditions. The EFAA applies to the FAC, which in turn invalidates the Agreement. As the EFAA applies to invalidate the Agreement against a single claim, it applies to invalidating the Agreement against all of Plaintiff's claim. (<i>Casey, supra</i>, 108 Cal.App.5th at 588.) The Motion is DENIED based on the EFAA. As such, the court need not address the unconscionability arguments. <i>Plaintiff's counsel to give notice.</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (<i>Southland v. Corp. v. Keating</i> (1984) 465 U.S. 1, 12.) The party claiming the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (<i>Woolfs v. Sup. Ct.</i> (Turner)(2005) 127 Cal.App.4th 197, 211-214.) Defendant produced some evidence of interstate commerce. (Arshad Decl. Ex. G; Hopkins-Donihe Decl. ¶¶ 2, 13, 16; Compl. ¶ 23.) Plaintiff neither disputes nor confirms whether the FAA applies. But whether the FAA applies is not really at issue because Defendant does not contend that any state law is preempted by the FAA. In fact, Defendant also cites to the California Arbitration Act in support of the motion. (Motion, p. 10.) The enforcement language of the FAA is almost identical to <i>Code of Civil Procedure section 1281</i>. Just like a motion to compel arbitration under the California Arbitration Act, <i>Code of Civ. Proc. § 1280 et. seq.</i>, a motion to compel arbitration under the FAA requires a finding that an agreement exists for arbitration between the parties and the agreement covers the dispute. (<i>AT&T Technologies, Inc. v. Communications Workers of America</i> (1986) 475 U.S. 643, 648-49.) State law applicable to contracts generally governs whether a valid agreement to arbitrate exists. (<i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492, fn. 9; <i>Stutler v. T.K. Contractors, Inc.</i> (6th Cir. 2006) 448 F.3d 343, 347; <i>Metters v. Ralphs Grocery Store Co.</i> (2008) 161 Cal.App.4th 696, 701 ("federal policy in favor of arbitration does not come into play . . . until a court has found the parties entered into a valid contract under state law.").)

		Thus, whether the FAA applies or not, the question is whether there is a valid, enforceable arbitration agreement and whether grounds exist for its revocation under California law. To form a contract under California law, there must be mutual assent. (<i>Herzog v. Super. Ct.</i> (2024) 101 Cal.App.5th 1280, 1293-1294; <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862.) “[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (<i>Long</i>, at p. 862, internal quotes omitted.) Defendant produced the Cardholder Agreement for the credit card account ending in 0144, which includes an arbitration provision that covers claims related to the application for or issuance of the account, use of the credit card account and statements related to the account. (Hopkins-Donihe Decl., Ex. C at p. 5.) In the complaint, Plaintiff alleges she is the victim of identity theft and that she did not authorize or consent to the application for, or use of, the credit card ending in 0144, or otherwise agreed to the Cardholder Agreement. (Compl. ¶¶ 23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant’s timeline and description of events, including phone calls from Plaintiff’s phone number evidencing consent, is consistent with identity theft, including a person hacking into someone’s computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others “when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]” (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by

		jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED. Defendant moves to strike the prayer for punitive damages in the Complaint. A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc.</i> §§ 435-436; <i>Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code</i> § 3294(a).) A properly pleaded fraud claim will itself support recovery of punitive damages. (<i>Stevens v. Sup. Ct. (St. Francis Med. Ctr.)</i>(1986) 180 Cal.App.3d 605, 610.) An employer is not liable for punitive damages "based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (<i>Civ. Code</i> § 3294, <i>subd. (b)</i>.) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (<i>Civ. Code</i>, § 3294, <i>subd. (b)</i>; see <i>Weeks v. Baker McKenzie</i> (1998) 63 Cal.App.4th 1128, 1150-1151; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 712- 713.) Here, Plaintiff cured the defect in the prior pleading and now alleges sufficient facts to support corporate liability for punitive damages, at least at the pleading stage. (FAC ¶ 46.) While Defendant argues the new allegations are conclusory, the FAC as a whole (including a viable claim for fraud) contains sufficient facts to apprise Defendant of the basis upon which Plaintiff is seeking relief. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) Furthermore, specific facts regarding corporate authorization and ratification lies within the knowledge of Defendant. The motion is therefore DENIED.

		<i>Plaintiff shall give notice of this ruling.</i>
8.	Jaffe v. Venous Technologies Inc, 1415883	Before the Court is a motion to enforce prior discovery order and for further code-compliant responses to requests for admission, set two (RFA), nos. 17 and 18, filed by plaintiff Allen V. Jaffe (Plaintiff) against defendant Venous Technologies, Inc. (Defendant). For the reasons set forth below, the motion is DENIED. Defendant's prior responses to RFA nos. 17 and 18 contained objections only, without a denial or admission. On November 13, 2025, the Court overruled the objections based on relevance, ambiguity and undue burden, and ordered Defendant to produce further responses to the RFAs within 20 days. (RAO 83.) Plaintiff concedes Defendant provided supplemental responses on December 3, 2025. (Motion, p. 4.) While Plaintiff titled the motion, in part, as a "motion to enforce prior discovery order," the responses were timely served within 20 days as ordered by the Court, and Defendant responded to RFA nos. 17 and 18 with denials (albeit with the same objections). (Declaration of John K. Rubiner, Ex. B.) Thus, Defendant complied with the Discovery Order. To the extent Plaintiff seeks further responses pursuant to <i>Code of Civil Procedure</i> section 2033.290 (see Motion, pp. 1, 4), such a motion is procedurally defective because it is not accompanied by a meet and confer declaration or a separate statement. (<i>Code of Civ. Proc.</i> § 2030.290, <i>subd. (b)(1), (2)</i>; <i>Cal. Rules of Court</i>, rule 3.1345(c).) Moreover, the motion fails on the merits. Responses to requests for admission must be "as complete and straightforward as the information reasonably available to the responding party permits." (<i>Code Civ. Proc.</i>, § 2033.220, <i>subd. (a)</i>.) "Each answer shall: [¶] (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." (<i>Id.</i>, <i>subd. (b)</i>.) In lieu of admitting or denying the request, the party may serve objections to particular requests. (<i>Code of Civ. Proc.</i> § 2033.210, <i>subd. (b)</i>.) If only part of a request is objectionable, the remainder must be answered. (<i>Code of Civ. Proc.</i> § 2033.230, <i>subd. (a)</i>.) Here, the Court previously overruled Defendant's objections because the responses contained objections only – meaning that Defendant could not hide behind the objections to avoid providing a substantive response. Now that Defendant has provided a substantive response to RFA nos. 17 and 18 with denials, the objections merely qualify the denials, <i>i.e.</i>, "[d]eny so much of the matter involved in the request is untrue." (<i>Code Civ. Proc.</i>, § 2033.220, <i>subd. (b)(2)</i>.) In other words, Defendant objects to only part of the request. This is proper under the code. The motion is therefore DENIED.

		<i>Defendant shall give notice of this ruling.</i>
9.	Sakasamo v. Adidev Technologies, Inc. 25-1334503	The demurrer of defendant Adidev Technologies, Inc. (Adidev) directed to the complaint of plaintiff Sisame B. Sakasamo (Plaintiff) is OVERRULED IN PART and SUSTAINED IN PART with 20 days leave to amend. As an initial matter, the Court declines to consider Plaintiff's untimely opposition. The opposition was filed four days late. The opposing papers do not set forth good cause for the tardiness, nor is there any explanation whatsoever for the late filing. The Court thus exercises its discretion to refuse to consider the late filed papers. (<i>Cal. Rules of Ct., rule 3.1300(d).</i>) Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (<i>Id.</i> at 1395.) Contrary to Adidev's argument, the second cause of action does not appear duplicative of the breach of contract claim. The breach of contract cause of action alleges defendants breached the agreement by: "(a) failing to provide any meaningful ongoing services after initial placement; (b) failing to provide technical tools, software, or resources despite Plaintiff's requests; (c) admitting in writing through their representative Naziya that they 'usually don't' provide ongoing services; (d) providing only two weeks of temporary housing during relocation and no other substantial services; and (e) collecting payments while providing no consideration or services in return." (Compl., ¶ 33.) The cause of action for breach of implied covenant, by contrast, is based on, among other things, allegations that defendants "consistently avoided written communications regarding service inquiries" and refused a request for a temporary payment deferral due to Plaintiff's financial hardship. (See Compl., ¶ 38.) These allegations go beyond a mere contract breach. The demurrer to the second cause of action is OVERRULED. Third Cause of Action for Constructive Fraud and Fourth Cause of Action for Misrepresentation to Induce Relocation (Lab. Code §970) Adidev is correct that these fraud-based claims are not pled with the requisite specificity. The causes of action refer to "Defendants"

		generally and thus fail to differentiate between representations allegedly made by Adidev and those made by TP-Link Systems, Inc. In addition, the causes of action fail to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written, as required for fraud claims against a corporation. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Accordingly, the demurrer to the third and fourth causes of action on this ground is SUSTAINED with 20 days leave to amend. <i>Counsel for Adidev shall give notice.</i>
10.	Dodd v. Ford Motor Company 25-1465355	Before the Court is a Demurrer by defendant Ford Motor Company ("Ford") to plaintiff's First Amended Complaint ("FAC"). The Demurrer is OVERULED as to the 1st through 3rd causes of action and SUSTAINED as to the 4th and 6th causes of action, with 14 days leave to amend. Song Beverly Act claims (1st through 4th causes of action): Ford argues the Song Beverly Act (SBA) claims (1st through 4th causes of action) are barred by <i>Code of Civil Procedure</i> §871.21. The Court rejects Defendant's argument the six-year statute of repose under <i>Code of Civil Procedure</i> section 871.21(b) bars Plaintiffs' claims under the SBA. The statute of limitations and repose embodied in <i>Section 871.21</i> became effective on January 1, 2025. Plaintiffs purchased their vehicle on December 13, 2018 (FAC ¶7) As of the effective date of <i>Section 871.21</i>, the six year period for filing a complaint had already run. "Generally, statutes operate prospectively only." (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475) "A statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (<i>Ibid.</i>) "[T]he court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all." (<i>Aronson v. Superior Ct.</i> (1987) 191 Cal.App.3d 294, 297; see also, <i>Rosefield Packing Co. v. Superior Ct. in & for City & Cnty. of San Francisco</i> (1935) 4 Cal. 2d 120, 122-23- "If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.") Here, there is no express language of retroactivity in the statute, and Defendant failed to point to any other source showing the Legislature intended retroactive application.

As the demurrer to the 1st through 3rd causes of action is based solely on *Code of Civil Procedure §871.21*, the demurrer is **OVERRULED** as to these three causes of action.

4th Cause of Action – Breach of Implied Warranty

Ford also argues that the 4th cause of action for breach of implied warranty is barred by the four-year statute of limitations in *Commercial Code §2725*. This argument has merit.

A cause of action for breach of implied warranty of merchantability accrues upon tender of delivery. (*Cardinal Health 301, Inc. v. Tyco Elecs. Corp.* (2008) 169 Cal.App.4th 116, 134.) Here, plaintiffs allege they entered into a warranty contract on December 13, 2018. (FAC ¶ 7.) This allegation implies Plaintiffs purchased the vehicle and took possession, on that date. Plaintiffs allege the vehicle had the subject defects at time of sale on December 13, 2018. (FAC ¶54)

Plaintiff's reliance on *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 is misplaced as the *Mexia* court stated a cause of action could arise for its breach during the one-year time period, not that every undiscovered defect arises at discovery. Indeed, in *Mexia* it was agreed the claims were filed within the four year statute of limitations from the date of purchase, and the argument was whether the purchaser was required to notify the seller of discovered defects within the one-year duration of the implied warranty. (*Id.* at 1306, 1309-1311.)

Accordingly, the demurrer to the 4th cause of action is **SUSTAINED** with leave to amend.

6th cause of action – Fraudulent Inducement Concealment

Ford argues the 6th cause of action is barred by the statute of limitations and that Plaintiffs have failed to sufficiently plead delayed discovery.

Code of Civil Procedure §338(d) provides a three year statute of limitations for "an action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake."

"California law recognizes a general, rebuttable presumption, that plaintiffs have 'knowledge of the wrongful cause of an injury.' " (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (*Grisham*).) The delayed discovery rule rebuts that presumption and tolls the statute of limitations. (*Id.*; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803 ("Fox").)"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made

		earlier discovery despite reasonable diligence.” (<i>Fox, supra</i>, 35 Cal.4th at 808.) "When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." " (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.) Here, the FAC contains general allegations regarding tolling yet lacks sufficient factual detail. (See FAC at ¶¶34-35) The 6th cause of action is premised on the allegation that Ford concealed transmission problems from the plaintiffs. However, there are essentially no specific facts pled as to tolling. Instead, Plaintiff asserts the conclusionary statement that "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint." (FAC ¶35) Plaintiff does not state what was discovered and when. For example, the FAC alleges plaintiff discovered problems with the transmission on July 1, 2021 and brought the vehicle in for repair. (FAC ¶12) However, that was more than 3 years before filing the complaint. As pled, plaintiffs have failed to sufficiently plead tolling of the statute of limitations and therefore the Demurrer is SUSTAINED, with leave to amend. Further, Ford’s argument under the economic loss rule (the “ELR”) fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (<i>Id.</i> at 843.) The Demurrer, to the extent it is based on the ELR, thus fails here. Where the Demurrer has been SUSTAINED, plaintiffs are granted 14 days leave to amend. <i>Ford shall give notice.</i>
11.	Richards v. General Motors, LLC 25-1469068	Before the Court is the Demurrer filed by Defendant General Motors, LLC (“GM”) on 2/19/26, directed to the First Amended Complaint which was belatedly filed by Plaintiffs Brad Richards and Ruth Preston (“Plaintiffs”) on 4/16/26. The Demurrer is OVERRULED. The Demurrer is directed solely to the Fifth Cause of Action for Fraudulent Inducement- Concealment. But the FAC now adequately asserts that Plaintiffs purchased the subject vehicle from GM’s authorized retail dealership. (FAC ¶ 9.) That is sufficient to allege a relationship requiring GM to disclose known defects. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844.) The allegations as to the alleged defect in their vehicle (FAC ¶¶ 13, 14) adequately comport with their allegations as to the known “Transmission Defect” in these vehicles, under <i>Dhital</i>. The Demurrer is therefore OVERRULED.

		GM is to file its Answer within 10 days. <i>Plaintiff is to give notice of this ruling.</i>
12.	Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879	(Moot-FAC filed)
13.	Soteropoulos v. FCA US LLC 25-1492568	(Moot-FAC filed)
14.	Glickman v. Krolkowski 19-1049771	Before the Court are the Demurrer and Motion to Strike filed on 12/15/25 by Defendants Charles Krolkowski and Newmeyer & Dillion LLP ("Defendants"), directed to the Eighth Cause of Action in the Fourth Amended Complaint (the "Fourth AC") filed on 11/13/25 by Plaintiff William Glickman ("Plaintiff"). The Demurrer is OVERRULED. The Demurrer asserts that the claim under C.C.P. § 496 fails to state sufficient facts to support the cause of action. However, although not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will suffice, a claim is stated where facts are also alleged to infer careful planning and deliberation reflecting the requisite criminal intent. (<i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361-362; <i>Johnson v. Connie, LLC</i> (2025) 113 Cal.App.5th 850, 855-856.) Plaintiff alleges here that the Defendants repeatedly made knowingly false representations to Plaintiff to obtain fees, under circumstances reflecting careful planning, deliberation, and concealment, and thus showed criminal intent. (Fourth AC, ¶¶ 34, 36, 109-117, 130, 139-143, 189-193, and 369-371.) The claim is thus adequately pled to withstand Demurrer. Defendants' assertions that the claim lacks merit are beyond the scope of Demurrer. The Motion to Strike is DENIED. The motion asserts that the sums claimed as damages on the Eighth Cause of Action are grossly excessive. But Defendants have not shown that the dollar value for what was allegedly stolen is necessarily the only basis to claim actual damages here. (See <i>Citizens of Humanity, LLC v. Costco Wholesale Corp.</i> (2009) 171 Cal.App.4th 1, 18-19 [disapproved on other grounds in <i>Kwikset Corp. v. Sup. Court</i> (2011) 51 Cal.4th 310].) Whether the specific sums claimed as damages are justifiable is beyond the scope of the motion. Defendants are to file their Answer to the Fourth AC within 10 days. <i>Plaintiff is to give notice of these rulings.</i>
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